

- (b) Extended trading hours will be considered on a temporary, reviewable basis, to enable Council to assess the ongoing management performance of the premises and the impact on the neighbourhood amenity.
- (c) Council's assessment of extended trading hours will consider the following:
 - (i) The location of the premises, including proximity to residential and other sensitive land uses;
 - (ii) The specific use of the premises, i.e. pub, nightclub, restaurant. Licensed premises are not eligible for extended trading hours on Sunday nights;
 - (iii) The existing hours of operation of surrounding business uses;
 - (iv) Size and patron capacity of the premises;
 - (v) Security and general management of the premises;
 - (vi) Number and nature of substantiated complaints regarding the operation of the premises;
 - (vii) Compliance with conditions of consent;
 - (viii) Evidence that the applicant has taken a pro-active position in terms of industry best practice;
 - (ix) Record of successful waste management on site and clean up and management of waste in adjacent public domain;
 - (x) Length of time the premises has traded under current operator;
 - (xi) Availability of transport for patrons including taxis, buses and car parking areas;
 - (xii) Plan of Management submitted detailing how operations and impacts will be managed (refer to the *Development Application Guide* on Council's website for requirements);
 - (xiii) Likely noise impacts from the proposal, particularly during the proposed extended hours (mechanical ventilation, amplified noise, patrons' egress, etc.) and how these will be mitigated; and
 - (xiv) Any other matters considered relevant to the environmental evaluation of the premise.
- (d) Extended trading hours may initially be granted for a 1-year fixed term.
- (e) Following the completion of a satisfactory fixed term, a reviewable term may be permitted as follows:
 - (i) First reviewable term – up to a maximum of 2 years.
 - (ii) Second reviewable term – up to a maximum of 3 years.
 - (iii) Third and subsequent terms – up to a maximum of 5 years.

1.3.2 Review of Extended Trading Hours

- (a) Applications for a reviewable term are to be lodged between 6 months and 3 months before the end date of the current term.
- (b) If an application is lodged within the time frame specified in (a) but is not determined by the end date of the current term, the premises can continue to operate as per the current term hours until the application is determined.
- (c) If an application is lodged less than 3 months prior to the end date of the current term, the premises shall revert to its approved based hours on that end date.
- (d) If Council determines no further extension period shall be granted the premises must revert to its approved base hours.
- (e) If the operator of the premises changes, the extended trading hours may be returned to a fixed term of 1 year.